

Rupak S/O Dnyaneshwar Mahajan And ... vs State Of Mah., Thr. P.S.O. Hudkeshwar ... on 5 January, 2021

Author: Anil S. Kilor

Bench: V.M. Deshpande, Anil S.Kilor

apl-289-20(j).odt

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY

NAGPUR BENCH, NAGPUR

CRIMINAL APPLICATION (APL) NO. 289 OF 2020

1. Rupak S/o Dnyaneshwar Mahajan,
Age 27 Years, Occ. Business,
2. Dnyaneshwar S/o Shripat Mahajan,
Age 53 Years, Occ. Business,
3. Kavita W/o Dyaneshwar Mahajan,
Age 47 Years, Occ. Housewife,
4. Apeksha D/o Dnyaneshwar Mahajan,
Age 20 Years, Occ. Student,
All R/o : Near Sai Mandir, Plot No.32,
Ayodhya Nagar, Nagpur
5. Sapna D/o Sheshrao Thenge,
(After marriage Sapna W/o Rupak Mahajan)
Aged about 25 Years, Occ. Service,
R/o Ward No.3, Khapa Road, Vishwa Manav
Ruani Kendra Ajani, Khangaon, Ajni,
Dist. Nagpur

:

APPLICANTS

...VERSUS...

The State of Maharashtra,
Through its Police Station Officer,
Police Station Hudkeshwar, Dist. Nagpur

:

NON-APPLICANT

Mr. Prakash Jaiswal, Advocate for the applicant nos. 1 to 4
Mr. S.K.Gulam Kedar, Advocate for the applicant no.5.
Mr. S.M.Ghodeswar, Additional Public Prosecutor for the non-applicant.

CORAM : V.M. DESHPANDE &
ANIL S.KILOR, J.
DATE : 5th JANUARY, 2021.

ORAL JUDGMENT (Per : Anil S. Kilor, J.)

1. Rule. Rule is made returnable forthwith. Heard finally with the consent of the learned counsel for the respective parties.
2. The complainant and the accused persons in Crime No. 722 of 2018 dated 26th December, 2018, have approached to this Court for quashing of the said First Information Report and the Chargesheet bearing No. 183 of 2019 which is culminated into Regular Criminal Case No. 4018 of 2019, pending before Judicial Magistrate First Class, Corporation Court No.2, Nagpur for the offences punishable under Section 498-A read with 34 of Indian Penal Code.
3. Applicant no.5 is the complainant and the wife of applicant no.1. The marriage of applicant no.1 and applicant no.5 was solemnised on 28th February, 2018 at Nagpur and within a period of one year on 27th December, 2018 a criminal complaint came to be lodged by the applicant no.5 against the applicant nos. 1 to 4, alleging therein that the applicant nos. 1 to 4 have ill-treated her for not fulfilling demand of Rs.3,00,000/- to purchase four wheeler and on other grounds. On this complaint, the First Information Report was registered for the offence punishable under Section 498-A read with Section 34 of Indian Penal Code against the applicant nos. 1 to 4.
4. Heard Shri Prakash Jaiswal, learned counsel for the applicant nos. 1 to 4, Shri S.K.Gulam Kedar, learned counsel for the applicant no.5 and Shri S.M. Ghodeswar, learned Additional Public Prosecutor for the non-applicant/State.
5. Shri Jaiswal, learned counsel for the applicant nos. 1 to 4, draws attention of this Court to the compromise arrived at between the applicant no.1 and the applicant no.5. He submits that in view of the terms of the compromise, the dispute has been resolved and accordingly the applicant no.5 does not want to proceed against the applicant nos. 1 to 4 in the crime in question.
6. Shri Jaiswal, learned counsel for the applicant nos. 1 to 4, has further drawn attention of this Court to the affidavit filed by the applicant no.1 and applicant no.5, jointly stating therein that a petition for divorce by mutual consent under Section 13(B) of Hindu Marriage Act is pending before the Family Court, Nagpur and same was filed in view of the settlement.
7. Shri Jaiswal, learned counsel for the applicant nos. 1 to 4, further argues that as per the compromise it was agreed between the parties that the applicant no.1 shall pay Rs.7,00,000/- towards maintenance to the applicant no.5 and returned back Stridhan articles to the applicant no.5 and also pay Rs.1,50,000/- to the parents of applicant no.5. It is submitted that the said amount has already been paid by the applicant no.1 and received by the applicant no.5. Accordingly, he submits that looking to the nature of dispute which is matrimonial, this Court may quash the First Information Report, Chargesheet and other proceedings, in question.

8. Today, the applicant no.1 and applicant no.5 both are personally present in the Court and they are identified by the learned counsel for the applicant nos. 1 to 4 and learned counsel for the applicant no.5. On interaction with the applicant no.5, she has admitted receipt of the amount as per the compromise. Applicant no.5 has specifically informs this Court that in view of the compromise, she does not want to proceed in the matter and therefore she prays for quashing of the First Information Report, Chargesheet in question.

9. Looking to the nature of the dispute involved in the present matter which is admittedly a matrimonial dispute and further looking to the fact that both the applicant nos. 1 and 5 have settled the matter, moreover because learned Additional Public Prosecutor is present and representing the non-applicant/State, we are of the opinion that this matter can be disposed of even without issuing notice. Accordingly, we have proceeded in the matter, without issuing notice to non-applicant.

10. After going through the contents of the First Information Report, we find that the allegations are vague and general in nature. The pre-requisites to attract the Section 498-A of Indian Penal Code are missing. In addition to the same, since the applicant no.1 and applicant no.5 have settled the dispute between them and as per the compromise, the applicant no.1 has already paid the amount as agreed between them, it is unlikely that in the above referred backdrop the prosecution would culminate into conviction of the applicant nos. 1 to 4, therefore, to secure the ends of justice, we are of the convinced opinion that in the present matter, this Court should exercise its inherent power under Section 482 of the Code of Criminal Procedure. Accordingly, we pass the following order.

ORDER i. Criminal Application No. 289 of 2020 is allowed. ii. Chargesheet No. 183 of 2019 and proceeding bearing R.C.C. No. 4018 of 2019 pending before Judicial Magistrate First Class, Corporation Court No.2, Nagpur, alongwith First Information Report No. 722 of 2018 for the offences punishable under Section 498-A read with 34 of Indian Penal Code, are quashed and set aside.

iii. The Criminal Application is disposed of. No order as to costs.

JUDGE

JUDGE

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